

24STCV21486 24STCV21486

County: los-angeles

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Case Number: 24STCV21486 Hearing Date: July 13, 2026 Dept: 529

MARCUS GABRIEL

WHITTEMORE vs RAMY BARAMILY

motion for judgment on the
pleadings

Date of Hearing: July 13, 2026 Trial Date: None set

Department: 529 Case

No.: 24STCV21486

Moving Party: Defendant Ramy Baramily

Responding Party: No opposition

BACKGROUND

On August 23, 2024, Plaintiff Marcus G.

Whittlemore filed a complaint against Defendant Ramy Baramily for (1) Assault; (2) Battery; (3) Gender Violence in Violation of Civil Code §52.4; (4) Ralphs Civil Rights Act (Violation of Civ. Code §51.7); (5) Interference with Exercise of Civil Rights (Civ. Code §52.1); and (6) Intentional Infliction of Emotional Distress. Plaintiff alleges Defendant punched Plaintiff when Plaintiff, acting on behalf of his client in another civil matter, arranged for the return of approximately 200 electric scooters to that client and the client's business associate. Plaintiff alleges this was after Plaintiff observed Defendant and his employees attempting to take the scooters and confronted Defendant on the issue.

On January 28, 2025, the request for entry of default was entered against Defendant. The default was set aside on May 8, 2025.

On January 15, 2026, Plaintiff named Oleh Hlladun as Doe 1.

[Tentative] Ruling

Defendant Ramy Baramily's Motion for Judgment on the Pleadings is GRANTED.

DISCUSSION

Defendant Ramy Baramily moves for judgment on the pleadings pursuant to Code of Civil Procedure section 438 as to the third, fourth and fifth causes of action on the grounds that each of the causes of action fails to state facts sufficient to constitute a cause of action.

A motion for judgment on the pleadings is the functional equivalent to a general demurrer. (*Lance Camper Mfg. Corp. v. Republic Indemnity Co. of Am.* (1996) 44 Cal.App.4th 194, 198). Like demurrers, motions for judgment on the pleadings challenge the legal sufficiency of the allegations, not their veracity. (*Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994). Any defects must either appear on the face of the pleading, or else be taken by judicial notice. (*Bezirdjian v. O'Reilly* (2010) 183 Cal.App.4th 316, 321-22). The parties' ability to prove their respective claims is of no concern. (*Cloud v. Northrop Grumman Corp.* (1998) 67 Cal.App.4th 995, 99.) Though the Court must accept the allegations of the complaint and answer as true (*Gerawan Farming, Inc. v. Lyons* (2000) 24 Cal.4th 468, 515), it will not do so for "conclusions of law or fact, opinions, speculation, or allegations contrary to law or [judicially noticed] facts..." (*Stevenson Real Estate Servs., Inc. v. CB Richard Ellis Real Estate Servs., Inc.* (2006) 138 Cal.App.4th 1215, 1219-20).

Third Cause of Action

Civil Code section 52.4, subdivision (a), allows “[a]ny person who has been subjected to gender violence” to “bring a civil action for damages against any responsible party,” and “[t]he plaintiff may seek actual damages, compensatory damages, punitive damages, injunctive relief,” and attorney’s fees and costs. “[G]ender violence’ is a form of sex discrimination” and means either an act “that would constitute a criminal offense under state law that has as an element the use, attempted use, or threatened use of physical force against the person or property of another, committed at least in part based on the gender of the victim, whether or not those acts have resulted in criminal complaints, charges, prosecution, or conviction,” or “[a] physical intrusion or physical invasion of a sexual nature under coercive conditions, whether or not those acts have resulted in criminal complaints, charges, prosecution, or conviction.” (Civ. Code, § 52.4(c).)

Defendant argues liability under section 52.4 requires factual allegations plausibly supporting that the force or threat was committed at least in part “based on” the plaintiff’s sex/gender, not merely that the plaintiff is of a sex or gender. Defendant contends, here, the complaint’s asserted gender nexus is not supported by conduct to Plaintiff’s gender as required by the statute. At most, the allegations of a “derogatory remark” referencing Plaintiff as a “tough guy” is not enough to establish the statutory gender-based element.

The court finds Plaintiff has not sufficiently alleged a claim for violation of Civil Code section 52.4. The allegations that Defendant referred to Plaintiff as a “tough guy” do not amount to physical conduct — either criminal acts or invasion of a sexual nature under coercive conditions. The court also notes the allegations that Defendant attempted to punch Plaintiff, but missed do not sufficiently allege that the attempted punch was motivated in part by Plaintiff’s gender.

Based on the foregoing, the motion for judgment on the pleadings is GRANTED. If plaintiff does not have additional facts to allege, it will be GRANTED WITHOUT LEAVE TO AMEND.

Fourth Cause of Action

Civil Code section 51.7 states “[a]ll persons within the jurisdiction of this state have the right to be

free from any violence, or intimidation by threat of violence, committed against their persons or property because of political affiliation, or on account of any characteristic listed or defined in subdivision (b) or (e) of Section 51, or position in a labor dispute, or because another person perceives them to have one or more of those characteristics." (Civ. Code, § 51.7(a).) Section 51 characteristics include sex, race, color, religion, ancestry, national origin, disability, medical condition, genetic information, marital status, sexual orientation, citizenship, primary language, or immigration status. (Civ. Code § 51(a).) To plead a claim for violation of section 51.7, a plaintiff must allege (1) the defendant threatened or committed violent acts against the plaintiff; (2) the defendant was motivated by his perception of plaintiff's protected characteristic; (3) the plaintiff was harmed; and (4) the defendant's conduct was a substantial factor in causing the plaintiff's harm. (See *Austin B. v. Escondido Union School Dist.* (2007) 149 Cal.App.4th 860, 880-81.)

Defendant argues Plaintiff's attempt of tying the alleged incident to Plaintiff's gender are conclusory and not supported by specific facts indicating that gender was a motivating factor for any alleged violence or intimidation. Mainly, the complaint does not allege facts showing that any alleged conduct occurred because Plaintiff is male (or because of any protected characteristic), as required under section 51.7.

The court finds Plaintiff has not sufficiently alleged a claim for violation of Civil Code section 51.7. As noted above, the complaint does not sufficiently allege the attempted punch was motivated by Plaintiff's gender. It does not allege that the speech ("tough guy") was a threat of violence motivated by Plaintiff's gender.

Based on the foregoing, the motion for judgment on the pleadings is GRANTED. If plaintiff does not have additional facts to allege, it will be GRANTED WITHOUT LEAVE TO AMEND.

Fifth Cause of Action

A claim for violation of the Bane

Act can be brought by an individual against a private person, where that person interferes with the Plaintiff's legal rights by threat, intimidation, or coercion. (Civ. Code § 52.1(a), (b).) To allege a cause of action under

Civil Code section 52.1, the plaintiff must allege that “the defendant interfered with or attempted to interfere with the plaintiff’s legal right by threatening or committing violent acts.” (Doe v. State (2017) 8 Cal.App.5th 832, 842.) “[A] plaintiff need not allege the defendant acted with discriminatory animus or intent; a defendant is liable if he or she interfered with the plaintiff’s constitutional rights by the requisite threats, intimidation, or coercion.” (O’Toole v. Superior Court (2006) 140 Cal.App.4th 488, 502.) “Coercion inherent in the alleged constitutional violation, i.e., an over detention in jail, is insufficient to meet the statutory requirement of ‘threat, intimidation, or coercion.’” (Doe, supra, 8 Cal.App.5th at 842 (quoting Shoyoye v. County of Los Angeles (2012) 203 Cal.App.4th 947, 959).) “The statute requires a showing of threatening conduct independent from the alleged interference or violation of a civil right.” (Id. at 842-43.) “[A] wrongful arrest and detention, without more, cannot constitute ‘force, intimidation, or coercion’ for purposes of section 52.1.” (Id. at 843 (quoting Shoyoye, supra, 203 Cal.App.4th at 960).) 22

Defendant argues the complaint does not plead facts showing that Defendant’s alleged conduct interfered with, or attempted to interfere with, the exercise or enjoyment of a distinct constitutional or statutory right through threats, intimidation, or coercion as required by section 52.1. Instead, the fifth cause of action relies on conclusory recitations of statutory language and incorporates the same alleged physical-contact narrative underpinning the common-law tort claims.

The court finds Plaintiff has not sufficiently alleged a claim for violation of Civil Code section 52.1. It is unclear from the complaint what the constitutional right or statutory right Defendant interfered with through the threats, intimidation or coercion.

Based on the foregoing, the motion for judgment on the pleadings is GRANTED. If plaintiff does not have additional facts to allege, it will be GRANTED WITHOUT LEAVE TO AMEND.